

100 Beal Street Senior Affordable Housing

EXECUTIVE FACT SHEET & LEGAL BRIEFING

Location: 100 Beal Street, Hingham, MA 02043	Fee Simple Owner: Hingham Housing Authority (M.G.L. c. 121B)
Parcel ID: Map 58, Block 0, Lot 23 (15.014 Total Acres)	Designated Developer: Peabody Properties / AHSC Developers LLC
Proposed Disposition Footprint: Lot B (8.60 Acres / ~375,000 sq. ft.)	Program Scope: 68 Units (100% Affordable Senior Rental; 62+)
Net Buildable Upland: ~6.50 Acres (Outside Wetland Setbacks)	Transaction Structure: 99-Year Triple-Net Lease (100% Reversion)

1. KEY INACCURACIES CORRECTED & AUTHORITATIVE CLARIFICATIONS

Parameter	Prior Inaccuracy / Conflation	Authoritative Verified Reality & Basis
Parcel Acreage	Described informally as a "6.5-acre parcel."	The parent parcel is 15.014 acres . Under the HHA RFP and ANR subdivision plan, the disposition parcel (Lot B) is 8.6 acres (~375,000 sq. ft.). The ~6.5-acre figure is the net buildable upland area after deducting mandatory wetland setbacks. Lot A (~2.4 acres) contains the preserved adolescent home; Lot C (~3.55 acres) is open buffer. No official record defines the parcel as 6.5 acres.
Civil Engineering of Record	Attributed to "Weston & Sampson" as lead civil engineers for the development package.	The site civil feasibility study, ANR subdivision layout, and due diligence reporting for the HHA RFP were prepared by Bohler Engineering , with ALTA and boundary surveys by Control Point Associates, Inc. , wetland science by Lucas Environmental, LLC , and MEP review by Nangle Engineering . (<i>Weston & Sampson has performed other municipal/open-space engineering for the Town, including Bare Cove Park, but is not the civil engineer of record for the HHA package</i>).
Municipal Senior Center Conflation	Stated Town Meeting (Arts. 12 & 15) rejected land swaps, "solidifying 100 Beal Street."	Conflates two distinct projects: (1) Center for Active Living (CAL): Articles 12 (2026) & 15 (2025) sought a \$29.93M debt-exclusion borrowing for a new municipal senior community center at Bare Cove Park Drive, which failed to achieve a 2/3 borrowing majority (510–470). (2) 100 Beal Street: Independent senior affordable housing by HHA. It was never an alternative site for the municipal senior center, nor did the CAL defeat "solidify" Beal Street —HHA had awarded the housing RFP months earlier.

2. LEGAL CHAIN OF TITLE & STATUTORY COVENANTS

- 1. Fee Simple Conveyance (1989):** Deeded by the Town of Hingham to the HHA on March 7, 1989 ([Book 9097, Page 158](#)). While the deed contained a restrictive covenant for an adolescent facility with a 30-year right of re-entry, that re-entry right statutorily expired on **March 7, 2019** pursuant to M.G.L. c. 184A.
- 2. The 2001 MOU & Selectmen Litigation Vote (2019):** Town-funded demolition of WWII bunkers led to a June 12, 2001 MOU contemplating excess land return. On February 26, 2019, the Board of Selectmen voted 3–0 in open session to authorize litigation to compel land transfer.

- 3. State Statutory Title Encumbrance (M.G.L. c. 121B, § 34):** On July 18, 2019, the state housing agency (DHCD/EOHLC) recorded a formal *Notice of Statutory Transfer Restriction* ([Book 51379, Page 244](#)), confirming that as state-aided housing land, HHA is legally prohibited from transferring or disposing of the property without prior written state consent. On Sept 7, 2021, HHA voted 4–0 to formally rescind its prior transfer motion.
- 4. 2006 Town Meeting Deed Amendment (Article 38):** On April 26, 2006, Annual Town Meeting unanimously approved Article 38, formally amending the 1989 deed restriction to authorize multi-family senior/affordable housing on site.

3. 99-YEAR GROUND LEASE FRAMEWORK & REVERSION MECHANICS

Lease Covenant	Specific Legal & Financial Terms
Term & Expiration	Ninety-nine (99) years from the "Commencement Date" (triggered upon closing of construction loans and unappealable 40B permit, projected ~2027/28; term runs to ~2126–2127).
Triple-Net (NNN)	Developer bears 100% of capital construction, site civil engineering, repairs, utilities, insurance, and real estate taxes/PILOT. HHA incurs zero operating liability.
Public Consideration	Minimum \$500,000 upfront ground lease payment paid to HHA at loan closing + ongoing annual rent.
Public Reversion (Sec. 15.1)	Upon Year 99 expiration, full fee title to the 3-story, 68-unit building, grounds, and site improvements automatically surrenders and reverts 100% to the HHA at zero cost to the Town.
Lot A Adolescent Facility	Lot A (~2.4 acres housing the existing 12-bed Bay State Community Services youth residence) is strictly excluded from the ground lease and remains under direct HHA ownership.

4. ZONING, CHAPTER 40B PERMITTING & SAFE HARBOR DYNAMICS

- Official & Open Space (OO) Zoning:** Multi-family housing is barred in the OO district, requiring a Comprehensive Permit under **M.G.L. c. 40B** before the Hingham ZBA.
- Safe Harbor Benchmark (760 CMR 56.03):** Because Hingham's Subsidized Housing Inventory (SHI) currently exceeds 10%, the Town has statutory safe harbor. The ZBA has full legal latitude to condition or reject hostile 40B petitions. Therefore, 100 Beal Street is proceeding as a **negotiated "friendly" 40B** with broad municipal alignment.

5. CONSERVATION ADJUDICATION & WEYMOUTH BACK RIVER ACEC

- **Order of Resource Area Delineation (ORAD):** Approved 5–0 by the Hingham Conservation Commission on November 4, 2024; issued November 7, 2024 under [MassDEP File No. 034-1509](#) (Lucas Environmental, LLC & Control Point Associates, Inc. survey).
- **Resource Envelope:** Three Bordering Vegetated Wetland (BVW) systems, two Isolated Vegetated Wetlands (IVW), a certified vernal pool, and 200-ft Riverfront Area.
- **Back River ACEC Watershed:** Discharges into Hockley Run and Tucker's Swamp tributary to the 1982 Weymouth Back River ACEC, subjecting stormwater designs to heightened water quality, nitrogen loading, and thermal discharge scrutiny.